

Structure of the Proposed e-Waste Legislations

1. Title: E-waste (Management & Handling) Rules to be published under the Environment Protection Act
2. Objective: To put in place an effective mechanism to regulate the generation, collection, storage, transportation, import, export, environmentally sound recycling, treatment and disposal of e-waste. This includes refurbishment, collection system and producer's responsibility, thereby reducing the wastes destined for final disposal.
3. Essence: The producer of electrical and electronic equipment is responsible for the entire life cycle of its own branded product and in particular the environmentally sound end-of-life management and facilitating collection and take back.
4. Responsibility of each element in the e-waste value chain:
 - Producers
 - Dealers
 - Collection agencies/ collection Centres
 - Dismantlers
 - Recyclers
 - Consumer and bulk consumers
5. Procedure for authorisation of producers, collection agencies, dismantlers, recyclers and enforcement agencies
6. Procedure for registration/renewal of registration of recyclers
7. Regulations for import of e-waste
8. Liability of producers, collection agencies, transporters, dismantlers and recyclers
9. Information & tracking
10. Elimination of hazardous substances used in e-equipment
11. Setting up of designated authority to ensure transparency, audit and inspect facilities, examine authorisation/registration, etc

metal recovery, which is a complex process.

e-nam (EWA Newsletter for Awareness and Management) in its September 2008 issue has brought out the latest activities of EWA, MAIT-GTZ and others involved in the e-waste field. It has published extracts of an article titled 'Progress on e-waste, but Too Slow' by Mini Joseph Tejaswi. The statements of various experts quoted in the article are reproduced below:

Lakshmi Raghupathy, former director in the ministry of environment and forest and an expert in e-waste management, said that governmental regulations should make the producers solely responsible for the entire life-cycle—from manufacturing to recycling—of their products.

Nitin Gupta, CEO of Attero Recycling, said enterprises should be extremely careful and responsible while throwing their unwanted computers and storage devices.

Computer manufacturers in India are slowly getting active in e-waste management. "We are working with all stakeholders in the e-waste man-

agement eco-system," said S. Shankar, director (manufacturing and supply chain) in HP. The company has initiated a three-pronged strategy: partner with e-waste recyclers, build awareness among individual/enterprise customers and work with NGOs, recyclers, collectors and dismantlers.

Anne Cheong, senior service specialist in Dell, said each manufacturer has an individual producer responsibility. "We start from home. We have proper recycling facility in all countries including India. We are exploring that in Karnataka as well."

Though companies claim they are taking action, many don't believe enough is being done. "Things are very slow. Corporates are yet to understand the importance of it," said Wilma Rodrigues, founder member of Saahas, a development organisation. Decisions related to e-waste management, she said, are still taken by junior employees in organisations, with top executives not even looking at it. Almost every company has some mention on its website on e-waste management, but very few are doing anything. The

country has twelve authorised e-waste recyclers including e-Parisara and Ash in Bangalore, Tessam in Chennai and Eco-Reco in Mumbai. Ramky Group is setting up the country's largest integrated e-waste management facility in Bangalore in collaboration with GTZ, while Attero is building an integrated e-waste recycling plant in Uttar Pradesh.

D.C. Sharma, vice president of Ramky Enviro Engineers, cautioned that no player should indulge in cherry-picking, collect whatever one thinks is worth and leave the hazardous portions out. Ramky is also building a transfer storage disposal facility (landfill) for hazardous waste at Dobbespet on Tumkur Road.

Finally, through improved e-waste management in the major Indian cities, the e-waste initiatives taken in the country will achieve better environmental conditions. Moreover, health conditions of workers active in the e-waste recycling sector will enormously improve at the local level. As an overall effect, the living conditions for the neighbouring population will be better. The already existing schemes of e-waste recycling and material recovery, mainly in the informal sector, will be transformed to transparent and workers- and environment-friendly methods. In the long term, the problem of improper e-waste recycling will disappear due to improved methods, implementation of a take-back system and consideration of the extended producer's responsibility.

Experience exchange on national and international levels, including know-how transfer, is being facilitated through the various initiatives. Thus, a dialogue platform for Indian and European e-waste experts has been created, opening the doors for future industries to be developed and cooperation activities to be performed for technology and knowledge transfer. ●

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